

24STCV21803 24STCV21803

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 24STCV21803 Hearing Date: September 21, 2026 Dept: 11

Preliminary Approval of Class Action

Settlement

Department SSC-11

Hon. Bruce Iwasaki

Meza

v. Align

Aerospace LLC, et al.

Case No.: 24STCV21803

Hearing:

September 21, 2026

TENTATIVE

RULING

GRANT preliminary approval.

BACKGROUND

This is a wage and hour class action. On August 27, 2024, Plaintiff filed this class action lawsuit alleging violations of: (a) Labor Code sections 510 and 1198 (unpaid overtime); (b) Labor Code sections 226.7 and 512(a) (unpaid meal period premiums); (c) Labor Code section 226.7 (unpaid rest period premiums); (d) Labor Code sections 1194 and 1197

(unpaid minimum wages); (e) Labor Code sections 201 and 202 (final wages not timely paid); (f) Labor Code section 226(a) (non-compliant wage statements); (g) Labor Code sections 2800 and 2802 (unreimbursed business expenses); and (h) Business & Professions Code section 17200.

On

November 8, 2024, Plaintiff filed a Request for Dismissal that dismissed without prejudice AVIC International USA, Inc., one of the named defendants.

After engaging in discovery, investigations, and negotiations, on November 11, 2025, the Parties attended mediation with the mediator Gig Kyriacou that resulted in a settlement. A fully executed copy of the Settlement Agreement is attached to the Declaration of Douglas Han ("Han Decl.") as Exhibit 2.

Now before the Court is the Motion for Preliminary Approval of the Settlement Agreement.

SETTLEMENT

CLASS DEFINITION

· "Class"

and "Class Member" means all current and former hourly-paid or non-exempt employees of Defendant within the State of California at any time during the Class Period. (¶A.4)

· "Class

Period" means the period from August 27, 2020, through January 15, 2026. (¶A.11)

· "Participating

Class Member" means a Class Member who does not submit a valid and timely Request for Exclusion from the Settlement. (¶A.25)

TERMS

OF SETTLEMENT AGREEMENT

The

essential terms are as follows:

· The

Gross Settlement Amount ("GSA") is \$600,000,
non-reversionary. (¶C.1)

o

Escalator Clause: If it is determined
that the number of Workweeks through the Class Period exceeds ten percent (10%)
or more of 20,093 (i.e., more than 22,102 Workweeks), then the Gross Settlement
Amount shall increase proportionally over the ten percent (10%) increase (i.e.,
if the number of Workweeks increases by 12%, then the Gross Settlement Amount
will increase by 2%). (¶H)

· The

Net Settlement Amount ("Net") (\$357,500) is the GSA minus the following:

o

Up to \$200,000 (1/3) for
attorney fees (¶C.2.a);

o

Up to \$25,000 for attorney
costs (Ibid.);

o

Up to \$7,500 for a service
award to the proposed class representative (¶C.2.b); and

o

Up to \$10,000 for settlement
administration costs (¶C.2.c.)

· Defendant

will separately pay any and all employer payroll taxes owed on the Wage
Portions of the Individual Class Payments. (¶C.1)

· There

is no claim form requirement. (¶C.1)

·

Individual Class

Payment Calculation: An Individual Class Payment will be calculated by: (a) dividing the Net Settlement Amount by the total number of Workweeks worked by all Participating Class Members during the Class Period; and (b) multiplying the result by each Participating Class Member's Workweeks during the Class Period. (¶C.2.d) The Non-Participating Class Members will not receive any Individual Class Payments. The Administrator will allocate amounts equal to the Non-Participating Class Members' Individual Class Payments to the Net Settlement Amount for distribution to the Participating Class Members on a pro rata basis. (¶C.2.d.ii)

o Tax Allocation: 20% as wages and 80% as interest and penalties. (¶C.2.d.i)

·

"Response

Deadline" means forty-five (45) calendar days after the Administrator mails the Class Notice to Class Members and shall be the last date on which Class Members may: (a) fax, email, or mail Requests for Exclusion from the Settlement; (b) fax, email, or mail his or her Objection to the Settlement; or (c) fax, email, or mail a challenge to the number of Workweeks allocated to the Class Member in the Class Notice. Class Members to whom Class Notices are resent after having been returned undeliverable to the Administrator shall have an additional fourteen (14) calendar days beyond when the Response Deadline has expired. (¶32)

o If the number of valid and timely Requests for Exclusion identified in the Exclusion List exceeds ten percent (10%) of the total of all Class Members, Defendant may, but is not obligated, elect to withdraw from the Settlement. (¶II)

· Funding

of Settlement: On or before November 15, 2026 or on or before the Effective Date, whichever is later, and assuming the Administrator provides all the settlement funding information to Defendant, Defendant shall fund the Gross Settlement Amount and fund all employer-share of payroll taxes owed on the Wage Portion of the Individual Class Payments by transmitting the funds to the Administrator. (¶D.2)

· Disbursement:

No later than fourteen (14) calendar days after Defendant fully funds the Gross Settlement Amount, the Administrator will mail checks to the appropriate

entities and persons. The disbursement of the Class Counsel Fees Payment, Class Counsel Litigation Expenses Payment, and Class Representative Service Payment shall not precede disbursement of Individual Class Payments. (¶D.3)

· **Uncashed Settlement Checks:** The face of each check shall state checks that are not cashed within one hundred eighty (180) calendar days after the date of mailing will be voided. (¶D.3.a) For any Participating Class Member whose settlement check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Participating Class Member, thereby leaving no "unpaid residue" subject to the requirements of Code of Civil Procedure section 384, subdivision (b). (¶D.3.c)

· **The**
settlement administrator will be ILYM Group, Inc. (¶A.2)

Participating class members and
the named Plaintiff will release certain claims against Defendant. (See further discussion below)

ANALYSIS OF SETTLEMENT AGREEMENT

1.
Does
a presumption of fairness exist?

1.
Was the settlement reached through
arm's-length bargaining?
Yes. After
engaging in discovery, investigations, and negotiations, on November 11, 2025,
the Parties attended mediation with the mediator Gig Kyriacou that resulted in
a settlement. (Han Decl., ¶12.)

2.
Were investigation and discovery
sufficient to allow counsel and the court to act intelligently? Class Counsel represents that after initiating this lawsuit, the Parties engaged
in discovery. Plaintiff drafted and propounded special interrogatories and
requests for production of documents. The Parties then met and conferred and

agreed to engage in an informal exchange of information and eventually attended mediation. Prior to the mediation, Defendant produced documents relating to the policies, practices, and procedures regarding reimbursement of business expenses, paying hourly-paid and non-exempt employees for all hours worked, and meal and rest breaks along with payroll and operational policies. As part of Defendant's production, Class Counsel reviewed time records, pay records, and information relating to the size and scope of the Class, as well as data permitting them to understand the number of workweeks and pay periods. Putative class members were also located and interviewed to attain a better understanding of the extent and frequency of the alleged day-to-day violations. (Id. at ¶¶14-15.)

3.

Is Class Counsel experienced in similar litigation?

Class Counsel is experienced in class action litigation, including wage and hour class actions.

(Id. at ¶¶1-7.)

4.

What percentage of the class has objected? This cannot be determined until the fairness hearing. See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, ("Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing.").

CONCLUSION: The settlement is entitled to a presumption of fairness.

2. Is the settlement fair, adequate, and reasonable?

1.

Strength of Plaintiff's case. "The most important factor is the strength of the case for plaintiff on the merits, balanced against the amount offered in settlement." (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.) Here, Class Counsel has provided information, summarized below, regarding the estimated values of the class claims alleged:

Violation

Maximum Exposure

Realistic Exposure

Rest Period Violations

\$442,688.59

\$88,537.72

Meal Period Violations

\$215,626.08

\$43,125.22

Overtime/Minimum Wage: Off-the-Clock Work

\$541,707.28 to \$812,560.92

\$135,426.82 to \$203,140.23

Regular Rate

\$87,172

\$30,150.20

Reimbursement Claim

\$16,200

\$3,402

Waiting Time Penalties

\$491,750.40

\$122,937.60

Wage Statement Penalties

\$450,450

\$112,612.50

Total

\$2,245,594.35 to \$2,516,447.99

\$536,192.06 to

\$603,905.47

(Han

Decl., ¶¶35-50.)

2. Risk, expense, complexity and likely duration of further litigation. Given the nature of the class claims, the case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk of maintaining class action status through trial. Even if a class is certified, there is always a risk of decertification. (See *Weinstat v. Dentsply Intern., Inc.* (2010) 180 Cal.App.4th 1213, 1226 (“Our Supreme Court has recognized that trial courts should retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently discovers that the propriety of a class action is not appropriate.”).)

4. Amount

offered in settlement. Class Counsel obtained a settlement valued at \$600,000. This is approximately 23.8-26.7% of Plaintiff’s potential maximum recovery and 99-112% of the estimated realistic recovery which, given the uncertain outcomes, is within the “ballpark” of reasonableness.

The

settlement amount, after being reduced by the requested deductions, leaves approximately \$357,500 to be divided among approximately 162 class members. Assuming full participation, the resulting payments will average approximately \$2,206.79 per class member.

5. Extent

of discovery completed and stage of the proceedings. As indicated above, at the time of the settlement, Class Counsel had conducted sufficient discovery.

6. Experience

and views of counsel. The settlement was negotiated and endorsed by Class Counsel who, as indicated above, is experienced in class action litigation, including wage and hour class actions.

7. Presence of a

governmental participant. This factor is not applicable here.

8. Reaction

of the class members to the proposed settlement. The class members' reactions will not be known until they receive notice and are afforded an opportunity to object, opt-out and/or submit claim forms. This factor becomes relevant during the fairness hearing.

CONCLUSION:

The settlement can be preliminarily deemed "fair, adequate, and reasonable."

3. Scope of the
release

Releases of Claims: Effective on the date when Defendant fully funds the Gross Settlement Amount and funds all employer-share of payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiff, Participating Class Members, and Class Counsel will release claims against all Released Parties as follows: (¶E)

· Release by Participating Class Members: All the Participating Class Members, on behalf of themselves and their former and present representatives, agents, attorneys,

heirs, administrators, successors, and assigns, release the Released Parties from any and all claims and causes of action arising during the Class Period that were alleged in the Operative Complaint, or that reasonably could have been alleged by reason of or in connection with any fact set forth or referred to in the Operative Complaint ("Released Class Claims"). (§E.2)

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The Released

Class Claims include claims under applicable state or local law as well as applicable regulations and wage orders for: (i) violation of Labor Code sections 510 and 1198 (unpaid overtime); (ii) violation of Labor Code sections 226.7 and 512(a) (unpaid meal period premiums); (iii) violation of Labor Code section 226.7 (unpaid rest period premiums); (iv) violation of Labor Code sections 1194 and 1197 (unpaid minimum wages); (v) violation of Labor Code sections 201 and 202 (final wages not timely paid); (vi) violation of Labor Code section 226(a) (non-compliant wage statements); (vii) violation of Labor Code sections 2800 and 2802 (unreimbursed business expenses); (viii) violation of Business & Professions Code section 17200, et seq.; and (ix) actual damages/losses, including unpaid wages, general damages, special damages, interest, declaratory relief, attorney's fees and costs, premium pay/wages, consequential damages/losses, incidental damages/losses, liquidated damages, statutory wage penalties, statutory penalties, injunctive relief, civil penalties, punitive damages, exemplary damages, restitution, appointment of a receiver, and expenses. (§E.2.a)

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The Participating

Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, or workers' compensation, or claims based on facts occurring outside the Class Period. (§E.2.b)

· "Released Parties" means Defendant and its past, present, and/or future, direct and/or indirect owners, parent companies, shareholders, members, predecessors, successors, all affiliates, subsidiaries, officers, directors, members, managers, representatives, attorneys, investors, administrators, divisions, consultants, partners, joint venturers, assigns, accountants, insurers, reinsurers, legal representatives, agents, employees, and stockholders. (§A.30)

· Named Plaintiff will also provide a general release and CC § 1542 waiver. (¶E.1)

4. May conditional class certification be granted?

1.

Standards

A

detailed analysis of the elements required for class certification is not required, but it is advisable to review each element when a class is being conditionally certified (*Amchem Products, Inc. v. Windsor* (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a different standard to determine the propriety of a settlement class as opposed to a litigation class certification.

Specifically, a lesser standard of scrutiny is used for settlement cases. (*Dunk* at 1807, fn 19.)

Finally, the Court is under no “ironclad requirement” to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (*Wershba* at 240.)

2.

Analysis

a.

Numerosity. There are approximately 162 Class Members. (*Han Decl.*, ¶52.) This element is met.

b.

Ascertainability. The proposed class is defined above. The class definition is “precise, objective and presently ascertainable.” (*Sevidal v. Target Corp.* (2010) 189 Cal.App.4th 905, 919.) The class members are identifiable from Defendant's records. (*Han Decl.*, ¶52.)

c.

Community of interest. “The community of interest requirement involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.’” (*Linder*

v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

As to commonality,

Plaintiff asserts common issues of fact and law predominate as to each of the claims. Plaintiff contends that all hourly-paid or non-exempt persons employed by Defendant during the Class Period were subject to the same or similar employment practices, policies, and procedures. All the claims surround the alleged common schemes of: (a) failing to maintain compliant meal and rest break practices; (b) failing to reimburse business expenses; and (c) failing to fully and properly compensate employees for, inter alia, all hours worked, overtime work, noncompliant breaks, and associated wage statement and waiting time penalties. (Han Decl., ¶153.)

As to

typicality, counsel contends that Plaintiff is a former employee of Defendant. Plaintiff alleges that Plaintiff and the Class Members were employed by the same company and injured by the common policies and practices related to: (a) noncompliant meal and rest breaks; (b) uncompensated off-the-clock work; (c) unreimbursed business expenses; (d) untimely paid wages; and (e) inaccurate wage statements. Plaintiff seeks relief for these claims and derivative claims on behalf of the Class Members. The claims arise from the same employment practices and are based on the same legal theories as those applicable to the Class Members. (Id. at ¶154.)

As to adequacy,

Plaintiff represents that she has participated in the litigation and is aware of the duties of serving as class representative. (Declaration of Irene Meza.)

d.

Adequacy of class counsel. As indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

e.

Superiority. Given the relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

CONCLUSION: The class may be conditionally certified since the prerequisites of class certification have been satisfied.

5. Is the notice proper?

1.

Content of class notice. The proposed notice is attached to the Settlement Agreement. Its content appears to be acceptable. It includes information such as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; the proposed deductions from the gross settlement amount (attorney fees and costs, enhancement awards, and administration costs); the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the settlement; and the date, time, and place of the final approval hearing.

2.

Method of class notice.

No

later than fourteen (14) calendar days after the Court grants Preliminary Approval of the Settlement, Defendant will deliver the Class Data to the Administrator in the form of a Microsoft Excel spreadsheet. (§G.4.a) Using best efforts to perform as soon as possible, and no later than fourteen (14) calendar days after receiving the Class Data, the Administrator will send to all Class Members identified in the Class Data the Class Notice via first-class USPS mail. Before mailing the Class Notices, the Administrator shall update Class Member addresses using the NCOA. (§G.4.c)

No

later than three (3) business days after the Administrator's receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re-mail the Class Notice using any forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search, and re-mail the Class Notice to the most current address obtained. (§G.4.d)

If

the Administrator, Defendant, or Class Counsel is contacted by or otherwise discovers any person who believes that they should have been included in the Class Data and should have received Class Notice, the Parties will meet and confer in person or by telephone or email to determine whether to include them

as a Class Member. If the Parties agree, such persons will be deemed Class Members entitled to the same rights as other Class Members, and the Administrator will send, via email or overnight delivery, a Class Notice requiring them to exercise options under this Agreement no later than fourteen (14) calendar days after receipt of Class Notice or deadline set forth in the Class Notice, whichever date is later. (§G.4.e)

Notice

will be given in English and Spanish. (§A.10)

Notice of Final Judgment will be posted on the Settlement Administrator's website. (§G.8.a)

3.

Cost of class notice. As indicated above, settlement administration costs are estimated not to exceed \$10,000. Prior to the time of the final fairness hearing, the administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

6.

Attorney

fees and costs

CRC rule 3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately,

the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) Despite any agreement by the parties to the contrary, "the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable." (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The

question of whether Class Counsel is entitled to \$200,000 (1/3) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel.

Class Counsel should also be prepared to justify the costs sought (capped at \$25,000) by detailing how they were incurred.

7. Incentive Award

The

Settlement Agreement provides for an enhancement award of up to \$7,500 to the named Plaintiffs. In connection with the final fairness hearing, named Plaintiffs must submit a declaration attesting to why he or she should be entitled to an enhancement award in the proposed amount. The named Plaintiff must explain why he or she "should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class." (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with "nothing more than pro forma claims as to 'countless' hours expended, 'potential stigma' and 'potential risk.' Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiff, is required in order for the trial court to conclude that an enhancement was 'necessary to induce [the named plaintiff] to participate in the suit . . .'" (Id. at 806-807, italics and ellipsis in original.) The Court will decide the issue of the enhancement awards at the time of final approval.